OD-16 and 17

ORDER SHEET
IN THE HIGH COURT AT CALCUTTA
ORDINARY ORIGINAL CIVIL JURISDICTION
ORIGINAL SIDE

IA NO. GA/5/2025
In
CS/281/2011

KAILASH AGARWAL
Vs
SHRI KRISHNAKANT BALKISHAN LADDHA & ANR.

And

IA NO. GA/5/2025
In
CS/282/2011

SCOPE COMMODEAL PVT.LTD.
Vs
SHRI KRISHNAKANT BALKISHAN LADDHA & ANR

BEFORE:
The Hon'ble JUSTICE ANANYA BANDYOPADHYAY
Date : 10th August, 2026.

Appearance:
Mr. Debdut Mukherjee, Adv.
Ms. Bhawna Parasramka, Dv.
Ms. Jyoti Barai, Adv.
...for the petitioner

The Court :- The present application has been taken out by the decree-holder seeking transmission of the decree dated 12th March, 2014, passed in CS No.281 of 2011, for execution before the competent Court at Thane, Maharashtra, as per the prayers in the Notice of Motion.

By the said decree, the suit was decreed in favour of the decree-holder for a sum of Rs.48,00,000/- together with post-decretal simple interest @7% per annum from the date of the decree till realization.

The appeal preferred against the decree was dismissed by the Division Bench on 22nd July, 2014, which had not been assailed thereafter in the higher forum to the knowledge of the petitioner. Therefore, there is nothing on record to indicate that the decree has thereafter been interfered with. The decree has, thus, attained finality, while the decretal dues remain unsatisfied.

The decree-holder had earlier initiated execution proceedings being EC/495/2015. By an order dated 13th July, 2018, the decree-holder was required to furnish the whereabouts of the judgment-debtors. At that stage, despite efforts, the decree-holder was unable to obtain particulars of any movable or immovable property of the judgment-debtors within the jurisdiction of the Court.

The position subsequently altered. Upon further inquiry, the decree-holder learnt existence of an immovable property, viz. Flat No.1101 on the 11th floor of building no.B-05, Sea Breeze Co-operative Housing Society, Plot No.-16, Sector-16, Nerul, Navi Mumbai, Maharashtra-400 703 stated belonging to the judgment-debtors, falling within the jurisdiction of the competent Court at Thane.

Pursuant to the order dated 3rd February, 2026, the Registry took steps for service of notice upon the judgment-debtors. The report of the Senior Police Officer, Nerul Police Station, Navi Mumbai, placed before the Court, recorded

that the judgment-debtors could not be found at the aforesaid address. Their son was met namely, Mr. Gaurav Krishna Kant Laddha at the aforesaid address who admitted the judgment-debtors were his parents and owing to a family dispute, had ceased to reside with him and were presently residing at Akola (Vidarbha, Maharashtra). The report consequently records inability to serve notice for lack of relevant information about the defendants.

The police report does not indicate the present residence of the judgment-debtors at Nerul. Its significance lies in demonstrating the steps to have been taken pursuant to the direction of this Court and the practical difficulty encountered in locating the judgment-debtors. The material circumstance for the present application remains the disclosure of the immovable property within the territorial jurisdiction of the Court at Thane and the absence of sufficient executable property within the jurisdiction of this Court.

The Learned Advocate representing the applicant referred to the provisions of Sections 38, 39(1)(b) and Section 39(1)(d) of the Civil Procedure Code urging that this Court under the facts and circumstances of the case, in absence of any executable property within the jurisdiction of this Court can grant the prayer as stated in the Notice of Motion.

Section 38 of the Civil Procedure Code, 1908, contemplates execution of a decree either by the Court which passed it or by the Court to which it is sent for execution.

Section 39 of the Civil Procedure Code, 1908, provides the machinery for such transmission. In particular, Section 39(1)(b) of the Civil Procedure Code permits transfer where the judgment-debtor has insufficient property within the jurisdiction of the Court which passed the decree but has property within the jurisdiction of another competent Court. Section 39(1)(d) of the Civil Procedure Code further permits transfer where, for any other reason to be recorded in writing, the Court considers that the decree should be executed by another Court. Section 39(3) of Civil Procedure Code prescribes the test for competence of the transferee Court.

The present case falls within the statutory contemplation of the aforesaid provisions. The decree has attained finality. The decretal amount remains unpaid. The earlier execution could not be effectively pursued for want of particulars of executable assets. A specific immovable property of the judgment-debtor has subsequently been disclosed and/or traced out within the jurisdiction of the competent Court at Thane.

The fact that the property is situated in another State attracts the provision of Section 40 of the Civil Procedure Code which provides for transmission of a decree for execution to a Court in another State. The Court which receives the decree thereafter exercises the statutory powers contemplated by the provisions of Section 42 of the Civil Procedure Code. The transferee Court executes the decree with the same powers as if the decree has been passed by itself.

The procedural requirements for transmission are provided in Order XXI Rule 6 of the Civil Procedure Code requiring the transmitting Court to

forward the requisite certified copy of the decree, certificate regarding satisfaction of the decree and other necessary papers. The transmission, therefore, does not involve any fresh adjudication of the rights determined by the decree. It merely places the final adjudication before the Court possessing the territorial competence to enforce it.

The decree-holder cannot reasonably require to continue before a Court within whose jurisdiction no sufficient executable asset has been identified when the property of the judgment-debtor/s has subsequently brought to its notice within the jurisdiction of another competent Court. The statutory scheme of Section 38 and Section 42 of the Civil Procedure Code exists precisely to prevent the territorial limits of the Court which passed the decree from frustrating its execution. Section 39 of the Civil Procedure Code itself recognizes such circumstances and permits transmission on recorded reasons.

In the circumstances disclosed, this Court is satisfied that the requirements for transmission of the decree are met and that the prayer of the decree-holder merits acceptance. Accordingly, prayers (a) and (b) of the Notice of Motion are allowed.

The decree dated 12th March, 2014, passed in CS No.280 of 2011 be transmitted for execution to the competent Court at Thane, Maharashtra in accordance with the provisions of Sections 39 and 40 of the Code of Civil Procedure, 1908.

The Registrar, Original Side, shall prepare and forward to the competent executing Court at Thane:-

i. Certified copy of the decree dated 12th March, 2014;

ii. Certificate contemplated under Order XXI Rule 6 regarding the extent to which the decree remains satisfied;

iii. The requisite papers relating to the earlier execution proceedings;

iv. The schedule of costs and

v. Such other documents as are required for transmission and execution of the decree in accordance with law.

The competent executing Court shall proceed with in accordance with law and shall exercise the powers available to it under Section 42 of the Civil Procedure Code.

The disclosure of property at Nerul shall not be construed as an adjudication upon its title or upon the rights of any third party. Any question arising in execution shall be dealt with by the competent executing Court in accordance with law. The result of execution shall be certified to this Court in terms of Section 41 of the Civil Procedure Code.

The prayer (c) is allowed to the aforesaid extent.

The instant application being GA/5/2025 is, accordingly, disposed of.

Urgent certified photocopy of this order, if applied for, be supplied to the parties upon compliance with all requisite formalities.

(ANANYA BANDYOPADHYAY, J.)

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